

Should Minors Be Tried in Adult Courts When They Commit Murder?

When a minor commits murder, many people argue the punishment should match the seriousness of the crime, regardless of age. According to Jennifer Bishop Jenkins in *“On Punishment and Teen Killers,”* “I understand how hard it is to accept the reality that a 16 or 17 year old is capable of forming such requisite criminal intent.” This shows that some believe teens know exactly what they are doing and should face full consequences. However, teenagers are still developing mentally and emotionally, which affects how they think and act. Minors under the age of **18** should not be tried in adult courts because their brains are still developing, they deserve the chance to be rehabilitated, and adult prisons can cause more harm than good.

First, teens—even those who are 16 or 17—do not think the same way adults do because their brains are not fully developed. David Dobbs explains in *“Beautiful Brains”* that “the brain’s wiring continues to be refined well into our 20s.” This means that even though teens can tell right from wrong, their judgment and impulse control are not as strong as adults’. Dobbs also writes, “Adolescence is a time of high emotions, risk taking, and impulsive decisions because the frontal lobes are still under construction.” This scientific evidence proves that teens may act out of emotion or peer pressure, not because they plan their crimes like adults would. Since their brains are still growing, it’s unfair to hold them to the same legal standards as fully developed adults.

Second, while some victims’ families believe adult punishment is necessary, teens still have the potential to change. Jenkins acknowledges that “there are no words adequate to describe what this kind of traumatic loss does to a victim’s family.” This is a powerful reminder that their pain is real and justice is necessary. However, locking minors away for life ignores the science showing that young people can learn and grow from their mistakes. Juvenile courts focus on rehabilitation—offering therapy, education, and support—to help young offenders change before they become adults. If we want safer communities, giving teens the chance to rebuild their lives is more effective than sending them to adult prisons.

Finally, adult prisons are not safe or appropriate for minors. Dobbs notes that “the adaptive adolescent brain is built to learn quickly and take chances—but that same wiring can lead to poor choices and dangerous behavior.” If teens are placed in adult prisons, they are surrounded by older, more violent criminals who can influence them negatively. Research shows that teens in adult prisons are more likely to commit more crimes after release. Instead of helping them improve, adult punishment increases the risk of future violence and damages society in the long run.

In conclusion, while people like Jenkins argue that teens should face adult punishment because their actions have serious consequences, the science in Dobbs’ *“Beautiful Brains”* shows why that approach is unfair and ineffective. Teens’ brains are still developing, they can still be rehabilitated, and adult prisons are unsafe and damaging for them. Minors under 18 should not be tried in adult courts for murder. True justice means holding them accountable in a way that

matches their age, understanding, and potential to change—creating a fairer and safer future for everyone.